

26TRCV00819 26TRCV00819

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Case Number: 26TRCV00819 Hearing Date: July 16, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

TERESA

COLLINS, an individual and WILLIAM COLLINS, an individual

Plaintiff,

Case No.:

26TRCV00819

vs.

[Tentative]

Granted

AMERICAN

HONDA MOTOR CO., INC., a California Corporation; and DOES 1-20, Inclusive,

Defendants.

Hearing

Date: July
16, 2026

Moving Parties: Defendant American Honda Motor Company

Responding

Party: Plaintiffs Teresa and Willima
Collins

HEARING: Motion to Compel
Arbitration

The
Court considered the moving, opposition, and reply papers.

RULING

The Court grants the Motion to Compel
Arbitration.

BACKGROUND

On March 6, 2026, Plaintiffs Teresa
and Willima Collins filed the Complaint against Defendant American Honda Motor
Company alleging causes of action for violation of the Song-Beverly Act.

On May 11, 2026, Defendant filed the
Motion to Compel Arbitration.

On July 2, 2026, Plaintiff filed the
Opposition.

On July 9, 2026, Defendant filed the
Reply.

LEGAL STANDARD

The Federal Arbitration Act (the "FAA")
applies in both federal and state courts to contracts evidencing a transaction
involving interstate commerce. (9 U.S.C. §§ 1-2; Southland Corp. v. Keating

(1984) 465 U.S. 1, 12.) The FAA preempts conflicting state law. (Preston v. Ferrer (2008) 552 U.S. 346, 353.) The party that contends the FAA applies bears the burden to demonstrate that the arbitration agreement is in a "contract evidencing a transaction involving commerce." (Woolls v. Super. Ct. (2005) 127 Cal.App.4th 197, 211.)

Under Code of Civil Procedure section 1281.2, "[o]n petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement."

DISCUSSION

The instant case arises out of the lease of a 2026 Honda CR-V, VIN 7FARS6H92TE008411. The leased vehicle's warranty booklet included an arbitration agreement.

Agreement to Arbitrate:

"Please note that this new vehicle limited warranty contains an arbitration provision that may affect your legal rights, and you agree that, pursuant to the Arbitration Provision contained in this warranty (beginning on page 6) of this booklet, that either you or American Honda Motor Co., Inc. may elect to resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision contained (beginning on page 6) of this new vehicle limited warranty for additional information concerning the agreement to arbitrate ... You and we agree that any dispute arising out of or relating to any aspect of the relationship between you and Honda will not be decided by a judge or jury but instead by a single arbitration administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules in effect on the date of delivery of your vehicle to you. This Agreement to Arbitrate includes all claims, whether based in contract, tort, statute, fraud, misrepresentation or any other legal theory; claims arising out of your warranty; claims arising before or after this Agreement, such as claims related to statements about our products; claims about the performance, design of our

products, or manufacturing of our products; and claims that are currently the subject of purported class action litigation in which you are not a member of a certified class ... You may opt out of arbitration within 30 days after the date of delivery of your vehicle to you by sending a letter to: Honda's Office of the General Counsel, 1919 Torrance Blvd., Mail Stop CHI-5, Torrance, CA 90501, stating your name, Vehicle Identification Number, and intent to opt out of the arbitration provision. If you do not opt out, then this agreement to arbitrate is binding."

(Hurvitz Decl. Exhibit B.)

Existence of Valid Arbitration Agreement and Claims Covered by Arbitration Clause

"[T]he petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence..." (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284.) "In determining whether an arbitration agreement applies to a specific dispute, the court may examine only the agreement itself and the complaint filed by the party refusing arbitration [citation]. The court should attempt to give effect to the parties' intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made." (Weeks v. Crow (1980) 113 Cal.App.3d 350, 353.) "To determine whether a contractual arbitration clause requires arbitration of a particular controversy, the controversy is first identified, and the issue is whether that controversy is within the scope of the contractual arbitration clause." (Titolo v. Cano (2007) 157 Cal.App.4th 310, 316.) "Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration. The court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute." (California Correctional Peace Officers Ass'n v. State (2006) 142 Cal.App.4th 198, 205.)

"[A] party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (Giuliano, supra,

Plaintiff

argues the motion to compel arbitration should be denied because Plaintiffs never agreed to arbitrate any dispute with Defendant Honda, and there was no mutual assent to the arbitration provision contained in the Warranty Booklet.

Plaintiff contends that arbitration is a

matter of consent and that the Federal Arbitration Act cannot manufacture an arbitration agreement where none exists. Plaintiff argues Defendant cannot compel arbitration based on the Warranty Booklet because Plaintiffs never signed it, were never presented with it in a way they could understand, and were given no meaningful opportunity to accept or reject the arbitration provision buried within its 37 pages. Plaintiff states that a buyer's acknowledgment of receipt of warranty information is insufficient to establish consent to the arbitration agreement contained therein.

Plaintiff also argues Defendant has produced

no evidence that the Warranty Booklet was reviewed with Plaintiffs at the time of the lease, that the arbitration provision was explained to them in terms they could understand, or that they were informed of the opt-out provision.

Plaintiff additionally contends the

arbitration provision reflects a deliberate tactic by Defendant Honda to avoid litigation by concealing a jury trial waiver within an unsigned 37-page booklet without ensuring Plaintiffs had actual knowledge of or consented to its terms, and that without such knowledge and consent, Plaintiffs cannot be deemed to have waived their constitutional right to a jury trial.

In reply, Defendant argues the motion to compel arbitration

should be granted because Defendant established prima facie evidence of the arbitration agreement's existence and Plaintiff failed to meet the burden of producing admissible evidence disputing that existence.

Defendant contends

that under the burden-shifting framework, the moving party's initial burden is satisfied by attaching the arbitration agreement or reciting its terms verbatim, and that once that burden is met, the opposing party must produce admissible evidence creating a factual dispute regarding the agreement's existence. Defendant argues it satisfied that initial burden by attaching the

Warranty Booklet and setting forth the arbitration provision verbatim in its motion.

Defendant further

argues Plaintiffs failed to meet their burden because Plaintiffs do not dispute receiving the Warranty Booklet, do not dispute that the Warranty Booklet exists, and in fact expressly allege in the complaint that Plaintiffs received written warranties in connection with the lease. Defendant contends Plaintiffs' sole argument, that no dealership employee reviewed the Warranty Booklet or explained the arbitration provision line by line, is unsupported by any legal authority and does not create a factual dispute regarding the agreement's existence. Defendant also argues the arbitration provision is not buried as Plaintiffs suggest, noting that the Warranty Booklet prominently alerts the consumer, in bold type before the warranty terms even begin, that an arbitration provision affecting legal rights exists and directs the reader to it on page six.

In *Kostandian v. American Honda Motor Co., Inc.* (2026)

120 Cal.App.5th 872, the Court found that an arbitration agreement in a warranty booklet was valid and that the plaintiff had notice of it because he signed a delivery sheet confirming his receipt of the warranty booklet. (Id. at 882.)

Plaintiff attempts

to rely on *Knutson v. Sirius XM Radio Inc.* (9th Cir. 2014) 771 F.3d

559. In *Knutson*, the Court's reasoning for denying the motion to compel arbitration was that the warranty booklet wasn't delivered until a month after the car's purchase, and that the plaintiff had no reason to know he had any contractual relationship with SiriusXM Radio after purchasing a car from Toyota. (*Knutson v. Sirius XM Radio Inc.* (9th Cir. 2014) 771 F.3d 559, 562, 566; *Kostandian v. American Honda Motor Co., Inc.* (2026) 120 Cal.App.5th 872, 884.)

Here, however, Plaintiff has not shown that the warranty booklet was not delivered with the car, and Plaintiff had reason to know it was entering into a contract with Honda when it bought a Honda car.

Therefore, the Court finds that Defendant has shown the existence of a valid arbitration agreement, which Plaintiff has failed to rebut.

Waiver

Plaintiff argues Defendant waived its right to compel arbitration through litigation conduct inconsistent with an intent to enforce the arbitration agreement.

Plaintiff contends

that, under arbitration agreements, parties are treated like all other contracting parties, and courts may not impose a heightened-prejudice requirement on parties opposing arbitration. Plaintiff argues waiver is established by clear and convincing evidence that Defendant knew of the contractual right and intentionally relinquished or abandoned it through words or conduct so inconsistent with an intent to enforce the right that a reasonable fact finder would conclude it had been abandoned.

Plaintiff contends

Defendant's conduct establishes exactly that. Defendant filed its initial answer on April 8, 2026, without asserting any affirmative defense regarding arbitration, then filed an amended answer on May 1, 2026, removing all affirmative defenses entirely. Defendant waited until May 11, 2026, over a month after filing its initial answer, to ask Plaintiffs by email whether they would stipulate to arbitration, and filed its motion to compel arbitration only hours later without engaging in meaningful meet and confer regarding the existence of a valid arbitration agreement or Plaintiffs' position on it. Plaintiff also notes that Defendant responded substantively to written discovery served on April 15, 2026, and offered deposition dates for its Person Most Knowledgeable extending into the following year, both of which Plaintiff argues demonstrate an intent to litigate the matter in court rather than arbitrate it.

In reply, Defendant

argues that Plaintiff has failed to establish a waiver of the right to compel arbitration. Defendant contends the timeline of events demonstrates the opposite of intentional abandonment. Plaintiff filed the complaint on March 6, 2026, Defendant filed its initial answer on April 8, 2026, and only approximately one month later, on May 11, 2026, Defendant notified Plaintiff of its intent to enforce the arbitration agreement by requesting a stipulation. When Plaintiff immediately refused, Defendant filed the motion to compel arbitration the same day, expressly requesting a stay of proceedings. Defendant argues this conduct reflects prompt invocation of the contractual right to arbitrate at the earliest practical opportunity.

Defendant also

argues that Plaintiff's reliance on Defendant's discovery responses and objections to the PMK deposition notice as evidence of waiver is misplaced. Defendant contends that after it invoked arbitration and filed the motion to compel, Plaintiff elected to continue litigating by serving discovery and pursuing depositions, forcing Defendant to respond defensively while awaiting the Court's ruling. Defendant argues Plaintiff cannot manufacture a waiver by continuing to litigate after arbitration was invoked and then characterizing Defendant's necessary defensive participation as intentional abandonment.

Defendant further

argues Plaintiff's criticism of its meet and confer efforts is meritless because Plaintiff unequivocally refused to stipulate to arbitration before the motion was filed, leaving nothing further to discuss.

"To establish

waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it." (Quach v. California Commerce Club, Inc. (2024) 16 Cal.5th 562, 584.) In Quach, the Court found that Defendant had waived its right to arbitration after it failed to move to compel arbitration until 13 months into the case. (Id. at 587.) Here, the Motion to Compel Arbitration was filed only two months after the Complaint. Thus, the Court finds that Plaintiff has not shown that Defendant's actions waived its right to arbitration.

Therefore, the

Court grants the Motion to Compel Arbitration.